

The portions intended by the Act are not necessarily
 [*94] *portions *created* by the deed or will directing the accumulation, but may be portions pre-existing (*a*).

[19. **Direction to keep up a policy.**—A direction by will to pay out of the income of the testator's property the premiums on a policy of assurance effected on the life of another person by the testator in his lifetime, or to be effected after his death on the life of a person *in esse* at his death is not an accumulation within the Act, and may be continued after the expiration of 21 years from the testator's death (*b*).]

20. **Scotland and Ireland.**—Scotland was expressly excepted from the Act; but it has since been extended to it by 11 & 12 Vict. c. 36, s. 41.

As the statute was passed a short time before the union with Ireland, Irish estates are not affected by it (*c*). But where the rents of Irish property belonging to a domiciled Englishman were directed to be accumulated and become part of the personal estate, it was held that although the rents themselves might be invested for more than twenty-one years, the income arising from their investment could not be accumulated (*d*); and the Act applies to an accumulation of rents of leaseholds in England, but belonging to a testator domiciled in Ireland (*e*).

SECTION II.

ON UNLAWFUL TRUSTS.

1. **Trusts against the policy of law.**—The Court will not permit the system of trusts to be directed to any object that contravenes the *policy* of the law (*f*).¹ Thus, if the trust of

415; 2 De G. M. & G. 500; Edwards v. Tuck, 3 De G. M. & G. 40; Burt v. Sturt, 10 Hare, 415; and see Watt v. Wood, 2 Dr. & Sm. 60.

(*a*) Halford v. Stains, 16 Sim. 488; Barrington v. Liddell, 2 De G. M. & G. 498; Middleton v. Losh, 1 Sm. & Gif. 61; and see Burt v. Sturt, 10 Hare, 415.

[(*b*) Bassil v. Lister, 9 Hare, 177; Re Vaughan, W. N. 1883, p. 89.]

(*c*) Ellis v. Maxwell, 12 Beav. 104; Heywood v. Heywood, 29 Beav. 9.

(*d*) Ellis v. Maxwell, *ubi supra*.

(*e*) Freke v. Lord Carbery, 16 L. R. Eq. 461.

(*f*) See Attorney-General v. Pearson, 3 Mer. 399; Hamilton v. Waring,

¹ Where a trust is contrary to statute or public policy, equity will not aid in enforcing it; Servis v. Nelson, 1 McCart. 94; Lemmond v. Peoples,